



SSS,

Complainant,

NPC 23-064

For: Violation of the
Data Privacy Act of
2012

-versus-

RGC,

Respondent.

X-----X

SSS,

Complainant,

NPC 23-065

For: Violation of the
Data Privacy Act of
2012

-versus-

MTD,

Respondent.

X-----X

SSS,

Complainant,

NPC 23-066

For: Violation of the
Data Privacy Act of
2012

-versus-

FSD,

Respondent.

X-----X

DECISION

NAGA, P.C.;

Facts

Before the Commission are the consolidated cases filed by SSS against Respondents RGC, MTD, and FSD (collectively, Respondents), individually, for an alleged violation of Sections 25

(Unauthorized Processing), 26 (Access due to Negligence), 28 (Processing for Unauthorized Purposes), 31 (Malicious Disclosure), and 32 (Unauthorized Disclosure) of Republic Act No. 10173 or the Data Privacy Act of 2012 (“DPA”).

On 25 April 2023, the Commission, through its Complaints and Investigation Division (CID), received the individual Complaints Assisted Form (CAF) filed by the Complainant against the Respondents reiterating the same allegations.¹

In his CAF, the Complainant alleged that he is the Vice President of “KAMAY MO KAMAY KO TULONG TAYO, INC.” (Association), an association of senior citizens whose aim is to extend a helping hand to indigent senior citizens.² Respondent RGC is the Barangay Chairman of Barangay XX, Caloocan City, where the complainant claims to reside.³ At the same time, Respondents MTD and FSD are connected with the Office for Senior Citizen Affairs (OSCA) – Caloocan City as Officer-In-Charge and Information Controller, and as Social Welfare Assistant, respectively.⁴

The Complainant averred that he filed an administrative complaint for graft and corruption against Respondent RGC before the Sangguniang Panlungsod of Caloocan City the reason that there were “a number of irregular and questionable transactions came to light” in the course of his dealings with the barangay as Vice President of the Association, prompting him to file the said complaint.⁵

The Complainant stated that the association received a document from the Office of the Secretary to the Sangguniang Panlungsod that pertained to a Decision on the complaint against Respondent RGC, and his barangay council.⁶ Further, the Complainant claims that the dismissal of the complaint relates to the disclosure of his

¹ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066).

² *Id.*, at p. 6.

³ *Id.*, at p. 1.

⁴ *Id.*, at p. 1.

⁵ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 1-2.

⁶ *Id.*, at p. 2.

information.⁷ In the said Decision, a Certification⁸ from the City of Caloocan – Office for Senior Citizen Affairs headed by Respondent MTD, signed by Respondent FSD and requested by Respondent RGC was attached, which states that:

This is to certify that, as per records kept in this office, Mr. SSS XXX, with postal address at XXX is in (sic) the roster of Senior Citizens of Caloocan City.

This certification issued (sic) upon the request of RGC, Chairman of XXX for whatever legal intent it may serve.⁹

xxx

The complainant stated that Respondents processed his “sensitive personal data” without his knowledge and prior consent and was used as evidence before the Sangguniang Panlungsod.¹⁰ Moreover, the Complainant claims that Respondent MTD altered his barangay number to make it appear that he is a resident of BarangayXXX instead of BarangayXXX.¹¹ Complainant also claimed that Respondent RGC attached the “falsified certification” in his pleadings submitted to the Sangguniang Panlungsod.¹² Complainant stated that the use of the certification gravely influenced the decision on the administrative complaint for graft and corruption that was filed against Respondent RGC and his barangay council resulting in the dismissal of the said complaint on the grounds of lack of standing.¹³

Complainant alleged that he did not authorize Respondent RGC to request for the certification nor did Respondents MTD and FSD informed him that a third party requested for his “sensitive personal data.”¹⁴ Complainant expressed that “no third party has the right to

⁷ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MT, and FSD, at p. 6.

⁸ *Id.*, at p. 2, *See: Annex C.*

⁹ *Id.*, at p. 2, *See: Annex C.*

¹⁰ *Id.*, at p. 2.

¹¹ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MT, and FSDn, at p. 2.

¹² *Id.*, at p. 2.

¹³ *Id.*, at p. 6.

¹⁴ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2.

access any sensitive personal data and use it especially for sensitive legal purposes except from the data subject.”¹⁵

This prompted the Complainant to file a complaint against Respondents for violation of Sections 25, 26, 27, 29, 31, and 32 of the Data Privacy Act of 2012 (DPA).¹⁶

Complainant prayed that the Respondents be found liable for “unauthorized disclosure of [his] personal data; be issued a preventive suspension order to “prevent them from using their connections and authority to unduly influence the conduct of the investigation of [the Commission]”¹⁷; removal from office, and perpetual disqualification; and damages.¹⁸

Attached to the CAF dated 25 April 2023 were (i) an unnotarized Complaint Affidavit where the complainant alleged that Respondents violated the DPA, (ii) a Certificate of Non-residency dated 07 July 2022¹⁹, (iii) Authentication dated 11 July 2022²⁰, (iv) Certificate of Candidacy for Member, Sangguniang Barangay²¹, (v) letter dated 14 April 2023 from complainant to respondent MTD informing her of the document issued by respondent FSD and which complainant considered to be a data security breach²², (vi) transmittal letter addressed to E from S, Secretary to the Sangguniang Panlungsod dated 12 April 2023 pertaining to the transmittal from the Presidential Action Center²³, (vii) transmittal letter dated 20 March 2023²⁴, (viii) letter to the Presidential Action Center dated 20 March 2023²⁵, and (ix) Sangguniang Panlungsod Resolution No. 3932, series of 2023, dismissing the administrative complaint against Respondent RGC, and its attachments.²⁶

¹⁵ *Id.*, at p. 2.

¹⁶ *Id.*, at p. 2-3.

¹⁷ *Id.*, at p. 11.

¹⁸ Complaints-Assisted Form of SSS. dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), at p. 8.

¹⁹ *Id.*, See: Certificate of Residency.

²⁰ *Id.*, See: Authentication.

²¹ *Id.*, See: Certificate of Candidacy for Member, Sangguniang Barangay.

²² *Id.*, See: Letter to OSCA.

²³ *Id.*, See: Sangguniang Panlungsod Transmittal Letter.

²⁴ *Id.*, See: Office of the President – Presidential Action Center Transmittal Letter.

²⁵ *Id.*, See: Letter of AME to the President thru Presidential Action Center Transmittal Letter.

²⁶ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), at Complaint Affidavit of SSS against RGC, MTD, and FSD, See: Sangguniang Panlungsod Resolution No. 3932 S. 2023.

On 09 May 2023, the Complaints and Investigation Division (CID) issued an Order (To File Verified Comment and Appear Virtually for Preliminary Conference) dated 03 May 2023, requiring each Respondent to file its Verified Comment within fifteen (15) calendar days from receipt and to appear virtually for a Preliminary Conference.²⁷

On even date, CID issued another Order (Consolidating NPC Case No. 23-064, NPC Case No. 23-065 and NPC Case No. 23-066, Retaining the Preliminary Conference Schedules for NPC Case No. 23-065, Reminding the Respondents to Submit Verified Comment and Working Email Addresses, and Cancelling the Preliminary Conference Schedules for NPC Case No. 23-064 and NPC Case No. 23-066).²⁸

On 06 June 2023, Respondent RGC submitted his Verified Comment dated 05 June 2023.²⁹ In his Verified Comment, RGC averred that the Complainant failed to attach a Certification on Non-Forum Shopping in his Complaint-Affidavit, making his complaint defective.³⁰

Further, Respondent RGC alleged that the Complainant had filed several administrative and criminal cases against him wherein the Complainant used as evidence his Senior Citizen Identification Card (ID) stating that bearing that he is a resident of Barangay XX.³¹ Respondent RGC averred that to prepare for his defense, he coordinated with different offices regarding the pieces of evidence presented by the Complainant.³² As a result, Respondent RGC stated

²⁷ *SSS. vs. RGC*, NPC Case No. 23-064; *SSS v. MTD*, NPC Case No. 23-065; and *SSS vs. FSD*, NPC Case No. 23-066; Order (To File Verified Comment and Appear Virtually for Preliminary Conference) dated 03 May 2023 of the Complaints and Investigation Division (CID).

²⁸ *SSS vs. RGC*, NPC Case No. 23-064; *SSS v. MTD* NPC Case No. 23-065; and *SSS vs. FSD* NPC Case No. 23-066, Order (Consolidating NPC Case No. 23-064, NPC Case No. 23-065 and NPC Case No. 23-066, Retaining the Preliminary Conference Schedules for NPC Case No. 23-065, Reminding the Respondents to Submit Verified Comment and Working Email Addresses, and Cancelling the Preliminary Conference Schedules for NPC Case No. 23-064 and NPC Case No. 23-066)

²⁹ Verified Comment of RGC dated 05 June 2023.

³⁰ *Id.*, at p. 2.

³¹ *Id.*, at p. 5.

³² Verified Comment of RGC dated 05 June 2023, at p. 5.

that he found out that based on Complainant's ID, the latter does not belong to Barangay XX.³³

Additionally, Respondent RGC purported as Barangay Chairman, he is mandated to assist the projects of the National Government, specifically in implementing Republic Act No. 9994 or the Expanded Senior Citizens Act of 2020, which grants certain privileges to senior citizens which can only be availed of by submitting proof of entitlement, including the presentation of an ID issued by the OSCA of the place where the senior citizen resides.³⁴ Further, Respondent RGC noted that the Complainant himself attached in all of the cases filed against the former, a copy of his senior citizen identification (ID) card bearing that he resides at Barangay XX.³⁵

Respondent RGC in his Verified Complaint, he vehemently denies that he violated the DPA, since he only intended to verify from OSCA whether the Complainant is within the roster of senior citizens of Barangay XX, since the former stated that he cannot find the latter in the roster of Barangay XX.³⁶ Thus, Respondent RGC, as Barangay Charmain has the duty to verify whether the said senior citizen is covered by the Expanded Senior Citizen Act, alleging that this initiative is not prohibited by the DPA.³⁷ Moreover, Respondent RGC alleged that the Complainant could not have a reasonable expectation of privacy as the Complainant accomplished the senior citizen form and submitted the same to OSCA, and that such expectation could no longer be reasonable "considering that the accomplished form can be subjected to inspection and review whether he is in the roster of Barangay XX or XX."³⁸

Finally, Respondent RGC averred that the Complainant has a "political vendetta" against him.³⁹ Thus, he prays that the complaint be dismissed as being defective and has lack of merit.⁴⁰

³³ *Id.*, at p. 5.

³⁴ *Id.*, at p. 6.

³⁵ *Id.*, at p. 4.

³⁶ Verified Comment of RGC dated 05 June 2023, at p. 11.

³⁷ *Id.*, at p. 11.

³⁸ *Id.*, at p. 11.

³⁹ *Id.*, at p. 14.

⁴⁰ Verified Comment of RGC dated 05 June 2023, at p. 14.

On 07 June 2023, an Order (Noting the Respondent RGC's Verified Comment, Reminding Respondents MTD and FSD to file Verified Comment and Working Address, and Reminding the Parties to Appear Virtually for Preliminary Conference) was issued by CID.⁴¹

On 15 June 2023, Respondent MTD submitted a Letter of Explanation dated 19 April 2023 addressed to the Complainant.⁴² In the said letter, Respondent MTD explained that:

Conversely, please be informed that based on our records, you are a registered senior citizen of Barangay XX with residence address at XXX, Hence, the subject certification was issued to P/B RGC on the basis of the said record. On the other hand, records submitted to OSCA in the year 201 indicated that you are an officer of Kamay Mo Kamay Ko Tulong Tayo, Inc., a senior citizen association in Barangay XX, with an address at XXX.

Based on the foregoing, it appears that you are using two (2) addresses in Caloocan City of which caused confusion to this office. Therefore, your records with our Office must be updated.

Relatedly, we wish to emphasize that the Office for Senior Citizens Affairs (OSCA) issued the subject certification to P/B RGC for purposes of compliance and in view of the presumption of regularity on the part of P/B RGC without any malice or purpose to jeopardize the person subject of the certification.⁴³

On 15 June 2023, an Order (Resetting the 1st Preliminary Conference on 15 June 2023 to 18 July 2023, Reminding Respondents MTD and FSD to Submit Their Verified Comment, and Noting the Letter Filed

⁴¹ SSS vs. RGC, NPC Case No. 23-064; SSS v. MTD, NPC Case No. 23-065; and SSS. vs. FSD NPC Case No. 23-066, Order (Noting the Respondent RGC's Verified Comment, Reminding Respondents MTD and FSD to file Verified Comment and Working Address, and Reminding the Parties to Appear Virtually for Preliminary Conference) dated 07 June 2023.

⁴² Letter of MTD addressed to SSS dated 19 April 2023.

⁴³ *Id.*

by Respondent FSD) was issued.⁴⁴ In the order, the original schedule of the first preliminary conference was reset due to an earthquake.⁴⁵

On 11 July 2023, Respondents MTD and FSD filed their Verified Comment.⁴⁶ In their Verified Comment, Respondents averred that the complaint was prematurely filed since Complainant failed to give OSCA an opportunity and reasonable time to address the privacy concern.⁴⁷ Further, Respondents MTD and FSD argued that OSCA was able to promptly respond to Complainant's concern as shown in the Letter Explanation dated 19 April 2023, informing the Complainant that as per OSCA's records, the latter is a registered senior citizen of Barangay XX.⁴⁸ Moreover, in the said Letter of Explanation, it was stated that based on the records submitted to OSCA in the year 2019, it was indicated that Complainant was an officer of the Association, a senior citizen association in Barangay XX.⁴⁹

Additionally, Respondents alleged that they cannot be held liable for violation of the DPA since the issuance of the certification was without intention to cause harm and upon request of a public official in the performance of his mandated duty and with the presumption of regularity.⁵⁰ Thus, Respondents also prayed that the complaint be dismissed for lack of merit.⁵¹

On 13 July 2023, an Order (Noting the Verified Comment (for Respondents MTD and FSD) and Reminding the Parties to Appear Virtually for Preliminary Conference) was issued by the CID.⁵²

⁴⁴ *SSS vs. RGC*, NPC Case No. 23-064; *SSS v. MTD*, NPC Case No. 23-065; and *SSS vs. FSD*, NPC Case No. 23-066, Order (Resetting the 1st Preliminary Conference on 15 June 2023 to 18 July 2023, Reminding Respondents MTD and FSD to Submit Their Verified Comment, and Noting the Letter Filed by Respondent FSD)

⁴⁵ *SSS vs. RGC*, NPC Case No. 23-064; *SSS v. MTD*, NPC Case No. 23-065; and *SSS vs. FSD*, NPC Case No. 23-066, Order (Resetting the 1st Preliminary Conference on 15 June 2023 to 18 July 2023, Reminding Respondents MTD and FSD to Submit Their Verified Comment, and Noting the Letter Filed by Respondent FSD)

⁴⁶ Verified Comment of MTD and FSD dated 11 July 2023.

⁴⁷ *Id.*, at p. 5.

⁴⁸ *Id.*, at p. 6.

⁴⁹ Letter of MTD addressed to SSS dated 19 April 2023.

⁵⁰ Verified Comment of MTD and FSD dated 11 July 2023, at p. 7.

⁵¹ *Id.*, at p. 9.

⁵² *SSS vs. RGC*, NPC Case No. 23-064; *SSS. v. MTD*, NPC Case No. 23-065; and *SSS vs. FSD*, NPC Case No. 23-066, Order (Noting the Verified Comment (for Respondents MTD and FSD) and Reminding the Parties to Appear Virtually for Preliminary Conference) dated 13 July 2023.

On 19 July 2023, the CID issued another Order (After the 1st Preliminary Conference held on 18 July 2023, Requiring Counsel of Complainant to Submit a Formal Entry of Appearance, and Granting the Adoption of the Parties Previous Submissions as their Respective Memoranda).⁵³

On 26 July 2023, counsel for the Complainant filed his Entry of Appearance through the General Records Unit (GRU) of this Commission.⁵⁴

Issue

Whether or not Respondents RGC, MTD, and FSD are liable for violating Sections 25 (Unauthorized Processing), 26 (Access due to Negligence), 28 (Processing for Unauthorized Purposes), 31 (Malicious Disclosure), and 32 (Unauthorized Disclosure) of the DPA.

Discussion

The Commission dismisses the complaint for lack of merit.

I. Respondents cannot be held liable for the violation of Section 25 of the DPA.

To determine whether Section 25 of the DPA is violated, the following requisites must be present:

1. The accused processed the information of the data subject;
2. The information processed was personal information or sensitive personal information; and,
3. That the processing was done without the consent of the data subject, or without being authorized under this act or any existing law.⁵⁵

⁵³ SSS vs. RGC, NPC Case No. 23-064; SSS v. MTD, NPC Case No. 23-065; and SSS vs. FSD, NPC Case No. 23-066, Order (After the 1st Preliminary Conference held on 18 July 2023, Requiring Counsel of Complainant to Submit a Formal Entry of Appearance, and Granting the Adoption of the Parties Previous Submissions as their Respective Memoranda), at p. 19 July 2023.

⁵⁴ Entry of Appearance for the counsel of the Complainant.

In his CAF, the Complainant alleged that Respondent RGC processed his “sensitive personal data” by requesting certification from OSCA⁵⁶ and used the said “falsified certification” in his pleadings before the Sangguniang Panlungsod.⁵⁷ As to Respondents MTD and FSD, the Complainant averred that they failed to inform him that a third party requested his “sensitive personal data.”⁵⁸ As defined in the DPA, processing refers “to any operation or any set of operations performed upon personal information including, but not limited to, the collection, recording, organization, storage, updating or modification, retrieval, consultation, use, consolidation, blocking, erasure or destruction of data.”⁵⁹ Thus, the first element is present.

As to the second requisite, it should be noted that the Complainant claims that his “sensitive personal data” has been processed by Respondents.⁶⁰ Upon review, the certification states that:

This is to certify that, as per records kept in this office, Mr. SSS Barangay XX, with postal address at XXX is in (sic) the roster of Senior Citizens of Caloocan City.

This certification issued (sic) upon the request of RGC, Chairman of Barangay XX for whatever legal intent it may serve.⁶¹

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Contrary to the Complainant’s claim that his “sensitive personal data” has been processed, only his name and address, which are considered as personal information, were processed in the said

⁵⁵ In re: Oriente Express Techsystem Corporation (CASHALO) and its Responsible Officers, NPC SS 21-005, Decision dated 16 June 2022, at p. 25.

⁵⁶ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2.

⁵⁷ *Id.*, at p. 2.

⁵⁸ *Id.*, at p. 2.

⁵⁹ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, § 3 (j) (2012).

⁶⁰ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2.

⁶¹ *Id.*, at p. 2, *See: Annex C*.

certification.⁶² Section 3 (g) of the DPA defines personal information “any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual.”⁶³ Thus, the second requisite is likewise present.

However, the third requisite is absent in this case. The complainant stated that the Respondents processed his “sensitive personal data” without his knowledge and prior consent and was made evidence before the Sangguniang Panlungsod.⁶⁴ However, consent is not the only criterion for lawful processing under the DPA.

Sections 12 (f) and 13 (f) of the DPA states:

SEC. 12. Criteria for Lawful Processing of Personal Information.

– The processing of personal information shall be permitted only if not otherwise prohibited by law, and when at least one of the following conditions exists:

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(f) The processing is necessary **for the purposes of the legitimate interests pursued by the personal information controller or by a third party or parties** to whom the data is disclosed, except where such interests are overridden by fundamental rights and freedoms of the data subject which require protection under the Philippine Constitution.

SEC. 13. Sensitive Personal Information and Privileged Information. – The processing of sensitive personal information and privileged information shall be prohibited, except in the following cases:

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⁶² Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2, *See: Annex C*.

⁶³ Section 3 (g) of Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012

⁶⁴ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064. NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2.

(f) The processing concerns such personal information as is **necessary for the protection of lawful rights and interests of natural or legal persons in court proceedings, or the establishment, exercise or defense of legal claims**, or when provided to government or public authority.⁶⁵ (Emphasis supplied)

Moreover, as held in the case of *EA and TA v. EJ, EE, and HC*, the Commission held that:

The DPA should not be seen as curtailing the practice of law in litigation. Considering that it is almost impossible for Congress to determine beforehand what specific data is “necessary” or may or may not be collected by lawyers for purposes of building a case, applying the qualifier “necessary” to the second instance in Section 13(f) therefore, serves to limit the potentially broad concept of “establishment of legal claims” consistent with the general principles of legitimate purpose and proportionality. As regards legitimate purpose, the Implementing Rules and Regulations (IRR) of the Data Privacy Act provides that the processing of information shall be compatible with a declared and specified purpose which must not be contrary to law, morals, or public policy. This means that the processing done for the establishment of a legal claim should not in any manner be outside the limitations provided by law. The DPA is neither a tool to prevent the discovery of a crime nor a means to hinder legitimate proceedings.

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Aside from legitimate purpose, the qualifier “necessary” also pertains to the general privacy principle of proportionality. Under the IRR, the processing of information shall be adequate, relevant, suitable, necessary, and not excessive in relation to a declared and specified purpose. Personal data shall be processed only if the purpose of the processing could not reasonably be fulfilled by other means. The proportionality principle, as manifested in the qualifier “necessary” serves as a sufficient test in determining whether the processing is justified in relation to the declared purpose.⁶⁶

In this case, Respondent RGC alleged that he processed the Complainant’s personal information since it was necessary to fulfill

⁶⁵ Section 12 (f) and Section 13 (f) of Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012

⁶⁶ *EA and TA v. EJ, EE, and HC*, NPC Case No. 17-018 dated 15 July 2019, at p. 8-10.

his obligation as Barangay Chairman to verify whether the latter is a resident of Barangay XX.⁶⁷ Respondent RGC in his Verified Comment averred that he only intended to verify from OSCA whether the Complainant is within the roster of senior citizens of Barangay XX since the former stated that he cannot find the latter in the roster of Barangay XX.⁶⁸

Consequently, Respondent RGC's act of processing Complainant's personal information complies with the principle of legitimate purpose since the purpose was to verify the address of Complainant and use the same in his pleadings, and was done not contrary to law, morals, and public policy.

Moreover, since the processed personal information in the certification pertained only to the Complainant's name and address, which is necessary to determine the barangay in which the Complainant resides, the same complies with the principle of proportionality which requires that the processed personal information shall be "adequate, relevant, suitable, necessary, and not excessive in relation to a declared and specified purpose. Personal data shall be processed only if the purpose of the processing could not reasonably be fulfilled by other means."⁶⁹ Respondent RGC needed to verify the address of the Complainant as part of his defense in relation to Complainant's locus standi in the graft and corruption case filed before the Sanggunian Panlungsod.

Further, in the case of KRL vs. Trinity University of Asia, et. al., the Commission ruled:

Although Section 13(f) applies to sensitive personal information while the information involved in this case is just personal information, the protection of lawful rights and interests under Section 13(f) by the respondent faculty members in this case is considered as legitimate interest pursuant to Section 12(f) of the DPA.⁷⁰

⁶⁷ Verified Comment of RGC dated 05 June 2023, at p. 5.

⁶⁸ *Id.*

⁶⁹ Section 11 of Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012

⁷⁰ KRL vs. Trinity University of Asia, AA, MC, NCB, RG, GV, GCT, RR, MR, PB, CID Case no. 17-K-003, dated 19 November 2019.

In this case, although the name and address of the Complainant are considered personal information, Section 13 (f) is applicable since the processing of personal information is pursued under a legitimate interest for the protection of lawful rights and interests of natural or legal persons in court proceedings, or the establishment, exercise, or defense of legal claims of Respondent RGC.

Moreover, in NPC 21-031, the Commission ruled:

The phrase ‘for the protection of lawful rights and interests of natural or legal persons in court proceedings’ cannot be interpreted to relate only to the person asserting the lawful basis of the processing of personal information. It also contemplates situations where those persons whose lawful rights and interests are protected in court proceedings may not be the same individuals who processed the personal information, such as in the case of witnesses. Similarly, the next clause ‘establishment, exercise or defense of legal claims’ may be interpreted to refer to the legal claims of persons other than those who processed the personal information.⁷¹

Here, it was admitted in the Verified Comment of Respondents MTD and FSD that they indeed issued the certification without the intention to cause harm and upon request of a public official in the performance of his mandated duty and with the presumption of regularity.⁷² Moreover, Respondent RGC’s purpose was legitimate since the Complainant filed a complaint as a senior citizen of Barangay XX affected Respondent RGC’s alleged corrupt practices.

It must be noted that Respondent FSD was the signatory in the certification and Respondent MTD was the Officer-In-Charge of OSCA.⁷³ Considering that Section 13 (f) of the DPA may be invoked by persons other than those who processed the personal information, the act of Respondent FSD, acting in a lawful request made by Respondent RGC to verify the address of Complainant is considered lawful processing. Lastly, the means used by Respondent RGC was lawful since the issuance of the certification was not proven by the

⁷¹ JCB vs. FRL, NPC 21-031, dated 03 March 2022

⁷² Verified Comment of MTD and FSD dated 11 July 2023, at p. 7.

⁷³ Complaints-Assisted Form of SSS dated 25 April 2024 (NPC Case No. 23-064, NPC Case No. 23-064, and NPC Case No. 23-066), Complaint Affidavit of SSS against RGC, MTD, and FSD, at p. 2, See: Annex C.

Complainant to have violated the conditions or procedures set by the Tanggapan ng Punong Barangay.

Considering the foregoing, this Commission finds the processing made by Respondent RGC in requesting and attaching the certification from OSCA and Respondents MTD and FSD on issuing the said certification relating to the Complainant, has lawful criteria to process the same as stated in Sections 13 (f) in relation to 12 (f) of the DPA, specifically, the processing was done for the establishment of his defense in the proceedings before the Sangguniang Panlungsod.

WHEREFORE, premises considered, this Commission resolves that the instant Complaint filed by SSS against Respondents RGC, MTD and FSD is hereby **DISMISSED** for lack of merit.

This is without prejudice to the filing of appropriate civil, criminal or administrative cases against the Respondents before any other forum or tribunal, if any.

SO ORDERED.

City of Pasay, Philippines.
18 April 2024.

SGD
JOHN HENRY D. NAGA
Privacy Commissioner

WE CONCUR:

SGD
LEANDRO ANGELO Y. AGUIRRE
Deputy Privacy Commissioner

SGD
NERISSA N. DE JESUS
Deputy Privacy Commissioner

Copy furnished:

SSS
Complainant

RGC
Respondent

MTD
Respondent

FSD
Respondent

COMPLAINTS AND INVESTIGATION DIVISION
ENFORCEMENT DIVISION
GENERAL RECORDS UNIT
National Privacy Commission